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| 10.                                              | 24CV2236 | COX vs. BAZEMORE |
| Motion for Summary Judgment/Summary Adjudication |          |                  |

Plaintiff moves for summary judgment, or in the alternative summary adjudication on two causes of action: 1) breach of contract and 2) Civil Code § 3342.

Request for Judicial Notice

Plaintiff requests the court to take judicial notice of an El Dorado County Potentially Dangerous/Vicious Dog Warning Letter Dated June 13, 2024.

Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 collectively govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed. A trial court is required to take judicial notice of any matter listed in section 452 if a party requests it and gives the other party sufficient notice to prepare to meet the request. Evidence Code § 453.

Evidence Code § 452(c) allows the court to take judicial notice of “official acts of the legislative, executive and judicial departments of the United States and of any state of the United States.”

The request for judicial notice is granted.

Breach of Contract

The elements of a breach of oral contract cause are: “(1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach.” (*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239, 70 Cal.Rptr.3d 667 [elements of breach of contract]; *Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 453, 183 Cal.Rptr.3d 186 [elements of breach of oral contract and breach of written contract claims are the same].)

Aton Ctr., Inc. v. United Healthcare Ins. Co., 93 Cal. App. 5th 1214, 1230 (2023).

Plaintiff has submitted Declarations and a Separate Statement establishing each element of the cause of action. Defendant has submitted a Declaration that includes the following statements on the issue of the contract cause of action:

“[D]elays in work progress and confusion had arisen between Plaintiff and BYC Enterprises regarding the project that is the subject of related litigation.”

“[I]nformation came to light regarding the scope of the project-related delays and confusion that had existed, which placed the incident and the parties' interactions into broader context.”

“Plaintiff's damages allegations, including claims of lost compensation, are therefore intertwined with the timing and circumstances of these project-related issues. The sequence of events and surrounding context are relevant to understanding the claims asserted and should be evaluated on a complete and balanced evidentiary record.”

None of these statements contains any factual assertion relevant to the issues of 1) whether a contract existed, 2) whether Plaintiff performed, 3) whether Defendant breached the contract or 5) whether Plaintiff suffered damages. Defendant asserts that: “Plaintiffs Motion seeks dispositive relief based on a record that is incomplete in context, not volume. The additional evidence identified herein bears directly on the issues Plaintiff asks the Court to resolve as a matter of law.” However, Defendant has not submitted any factual evidence for the Court’s consideration. Defendant had the opportunity to dispute any fact alleged in the Separate Statement filed with this motion but has not filed any response. This Complaint was filed on October 8, 2024, and Defendant was represented by counsel until July, 2025. Defendant has had ample opportunity to pursue discovery and submit any factual information supporting his position on this motion. The record is bare of any factual assertion that would support Defendant’s opposition.

#### Dog Bite

California Civil Code § 3342(a) provides:

The owner of any dog is liable for the damages suffered by any person who is bitten by the dog while in a public place or lawfully in a private place, including the property of the owner of the dog, regardless of the former viciousness of the dog or the owner's knowledge of such viciousness. A person is lawfully upon the private property of such owner within the meaning of this section when he is on such property in the performance of any duty imposed upon him by the laws of this state or by the laws or postal regulations of the United States, or when he is on such property upon the invitation, express or implied, of the owner.

Defendant argues that there is a genuine issue of material fact as to whether the incident can be characterized as a “vicious”, “violent” or as a “sustained attack”. These characterizations do not affect liability under the statute. The only factual issue is whether a Plaintiff was bitten by Defendant’s dog, and whether she was lawfully on the property at the time of the incident. The evidence in the record is uncontroverted on both issues.

**TENTATIVE RULING #10: PLAINTIFF’S REQUEST FOR JUDICIAL NOTICE IS GRANTED. PLAINTIFF’S MOTION FOR SUMMARY JUDGMENT IS GRANTED.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.**

March 20, 2026  
Dept. 9  
Tentative Rulings

**RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).**

**NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.**

**LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**